

Amendment No. 2 to HB0819

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 1369

House Bill No. 819*

by deleting "July 1, 2028" in subdivision (6) in SECTION 1 and substituting "July 1, 2030".

AND FURTHER AMEND by deleting SECTION 2 and substituting the following:

SECTION 2. Tennessee Code Annotated, Section 68-11-1602(10)(B), is amended by adding the following as new subdivisions:

() A satellite emergency department;

() An agency, institution, facility, or place, whether publicly or privately owned or operated, that provides cardiac catheterization;

SECTION 3. Tennessee Code Annotated, Section 68-11-1607(a)(3)(E), is amended by deleting the subdivision.

SECTION 4. Tennessee Code Annotated, Section 68-11-1607(a)(6), is amended by deleting the subdivision and substituting:

(6) Except as provided in subsection (x), the establishment of a satellite inpatient facility by a hospital at a location other than the hospital's main campus.

SECTION 5. Tennessee Code Annotated, Section 68-11-1607(x)(1), is amended by deleting "and subject to subdivision (x)(3),".

SECTION 6. Tennessee Code Annotated, Section 68-11-1607(x)(3), is amended by deleting the subdivision.

SECTION 7. Tennessee Code Annotated, Section 68-11-1607(y), is amended by deleting the subsection.

SECTION 8. Tennessee Code Annotated, Section 68-11-204(a)(1), is amended by adding the following as new subdivisions:

() Satellite emergency department;

() Cardiac catheterization;

SECTION 9. Tennessee Code Annotated, Section 68-11-204, is amended by adding the following as a new subsection:

(e)

(1) A person or entity shall not establish or operate a satellite emergency department unless the satellite emergency department is licensed as an outpatient department of a hospital licensed under this title.

(2) A person or entity shall not initiate or provide cardiac catheterization services unless the facility providing such services is licensed as an outpatient department of a hospital licensed under this title.

(3) Subdivision (e)(2) does not apply to a facility providing cardiac catheterization services that was in operation as of the effective date of this act.

SECTION 10. Tennessee Code Annotated, Section 68-11-204(a)(1), is amended by adding the following as a new subdivision:

() Acute care hospital;

SECTION 11. Tennessee Code Annotated, Section 68-11-205(g)(1)(A)(iii), is amended by deleting the subdivision.

SECTION 12. Tennessee Code Annotated, Section 68-11-202(a)(1), is amended by adding "satellite emergency departments, cardiac catheterizations," immediately preceding "hospitals".

SECTION 13. Tennessee Code Annotated, Section 68-11-202(a)(1), is amended by adding "acute care hospitals," immediately preceding "recuperation centers".

SECTION 14.

(a) For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it.

(b) For all other purposes:

(1) Sections 2-9 and 12 take effect July 1, 2027, the public welfare requiring it.

(2) Sections 10 and 13 take effect July 1, 2030, the public welfare requiring it.

(3) The remainder of this act takes effect upon becoming a law, the public welfare requiring it.